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Case Number: 24STCV18885 Hearing Date: July 15, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

BRIGHT UGOCHUKWU EKE,

Plaintiff,

vs.

PRIME VIP LIMO, LLC,

et al.,

Defendants.

Case No.:

24STCV18885

Hearing Date:

July 15, 2026

Hearing

Time: 10:00 a.m.

[TENTATIVE]

ORDER RE:

PLAINTIFF BRIGHT

UGOCHUKWU EKE'S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT TO ALLEGE
PUNITIVE DAMAGES

Background

Plaintiff Bright Ugochukwu Eke ("Plaintiff") filed this action on July 30, 2024 against Defendants Prime Vip Limo, LLC, Ally Limo, Inc., Precious Memories Limo, Inc., and Devon Pernell Logan ("Logan") (collectively, "Defendants"). The complaint alleges four causes of action for (1) negligence, (2) negligence per se, (3) negligent entrustment, and (4) negligent hiring, supervision & retention.

Plaintiff now moves to file a first amended complaint ("FAC"). Defendants oppose. Plaintiff replied.

Legal Standard

Pursuant to the Code of Civil Procedure section 473, subdivision (a)(1), "[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." Amendment may be allowed at any time before or after commencement of trial. (Code Civ. Proc., § 576.) "[T]he court's discretion will usually be exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." ((Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428 (internal citations omitted).) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." ((Morgan v. Superior Court of Los Angeles County (1959) 172 Cal.App.2d 527, 530.) Prejudice includes "delay in trial, loss of critical evidence, or added costs of preparation." ((Solit v. Tokai Bank (1999) 68 Cal.App.4th 1435, 1448.) However, "even if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial." ((Roemer

v. Retail Credit Co. (1975) 44 Cal.App.3d 926, 939-940.) In most cases, the factors for timeliness are: (1) "lack of diligence in offering the amendment after knowledge of the facts" and (2) "effect of the delay on the adverse party." ((Id. at p. 940.)

Ordinarily, the court will not consider the validity of the proposed amended pleading in ruling on a motion for leave since grounds for a demurrer or motion to strike are premature; however, the Court does have discretion to deny leave to amend where "a proposed amendment [fails] to state facts sufficient to constitute a cause of action" and "the insufficiency could not be cured by further appropriate amendment." (California Casualty General Ins. Co. v. Superior Court (1985) 173 Cal.App.3d 274, 280-281 (California Casualty), overruled on other grounds by Kransco v. American Empire Surplus Lines Ins. Co. (2000) 23 Cal.4th 390, 403-406.)

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments. ((Cal. Rules of Court, rule 3.1324(a)(1).) The motion must also state what allegations are proposed to be deleted or added, by page, paragraph, and line number. (Cal. Rules of Court, rule 3.1324(a)(2)-(3).) Finally, "[a] separate declaration must accompany the motion and must specify: (1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier." (Cal. Rules of Court, rule 3.1324(b), emphasis added.)

Discussion

A.

Procedural Requirements

The Court finds that Plaintiff complied with the procedural requirements of California Rules of Court, rule 3.1324. Plaintiff seeks to add punitive damages to his complaint, and Plaintiff's counsel explains that "[t]he proposed amendment is necessary and proper because the facts supporting punitive damages were not known to Plaintiff when the original Complaint was filed." (Neubauer Decl., ¶ 12.) Plaintiff's counsel also explains that "[t]he effect of the proposed amendment is to add factual allegations and

a prayer for punitive damages against Defendant Logan and the corporate defendants. The proposed First Amended Complaint does not add new parties. It does not change the underlying incident, the parties involved, the vehicle involved, or the core negligence and corporate-negligence theories already pleaded.” (Neubauer Decl., ¶ 13.)

Further, Plaintiff’s

counsel describes the facts and timeline for when Plaintiff learned about the facts and allegations giving rise to this amendment. Specifically, “Plaintiff’s proposed punitive damages allegations are based on facts learned through discovery, including Logan’s felony history, his false verified discovery response denying any felony conviction, his later deposition admission, his supplemental discovery responses identifying the felony convictions, and the corporate defendants’ hiring, screening, training, supervision, retention, and entrustment of Logan to operate a commercial passenger vehicle” (Neubauer Decl., ¶ 14), and Plaintiff’s counsel explains the timeline of discovery responses and taking Logan’s deposition. (See Neubauer Decl., ¶¶ 4-11.)

In regard to the

corporate defendants, Plaintiff’s counsel explains that “Plaintiff has also sought discovery from the corporate defendants concerning hiring, screening, training, supervision, retention, policies and procedures, safe driving policies, collision investigation, and entrustment. Those topics are directly relevant to Plaintiff’s existing negligent entrustment and negligent hiring, supervision, and retention claims. They are also directly relevant to whether corporate officers, directors, or managing agents authorized, ratified, or consciously disregarded Logan’s unfitness within the meaning of Civil Code section 3294(b).” (Neubauer Decl., ¶ 15.)

Counsel further states that “Defendants have refused to produce Persons Most Qualified on the corporate negligence topics, relying on *Diaz v. Carcamo* and a purported admission of vicarious liability or course and scope.” (Neubauer Decl., ¶ 16.) “On June 4, 2026, Plaintiff sent a detailed meet-and-confer letter to defense counsel regarding the PMQ deposition and punitive damages issues. In that letter, Plaintiff proposed a compromise: Defendants would produce PMQ testimony on the noticed topics, including hiring, training, supervision, and retention, and if the testimony did not support punitive damages, Plaintiff would withdraw the punitive damages issue and not seek leave to amend.” (Neubauer Decl., ¶ 18.) Plaintiff’s counsel explains that Defendants declined, and due to this, it “places Plaintiff in an unfair catch-22:

Defendants refuse to provide discovery regarding corporate knowledge, hiring, screening, training, supervision, retention, entrustment, authorization,

ratification, and managing-agent conduct on the ground that punitive damages have not yet been pleaded with sufficient specificity, while also opposing Plaintiff's ability to amend the pleading based on facts already discovered." (Neubauer Decl., ¶¶ 20-21.)

Plaintiff's counsel

attests that "Plaintiff did not seek this amendment earlier because the facts supporting punitive damages were not known when the original Complaint was filed. The relevant facts were learned through discovery, including Logan's deposition testimony and supplemental discovery responses." (Neubauer Decl., ¶ 22.) Further, "Plaintiff has acted diligently. Plaintiff took Logan's deposition, obtained supplemental discovery responses, pursued PMQ discovery, participated in the Court's informal discovery process, and sent a substantive meet-and-confer letter proposing a procedure that could have eliminated the need for this motion if PMQ testimony did not support punitive damages." (Neubauer Decl., ¶ 23.)

Plaintiff's counsel also attaches

the proposed FAC as Exhibit E to her declaration. The proposed FAC includes the proposed additions in bold, and the proposed deletions crossed out, thus complying with California Rules of Court, rule 3.1324(a)(2)-(3). Accordingly, Plaintiff meets the procedural requirements necessary for leave to be granted.

B.

Substantive Arguments

Defendants' opposition

dedicates the entirety of the motion to arguing the facts of the case.

Defendants assert that Plaintiff's causes of action do not support punitive damages; the complaint does not meet the pleading standard for punitive damages; and Plaintiff is attempting to circumvent the holding in *Diaz v. Carcamo* (2011) 51 Cal.4th 1148.

In response, Plaintiff

asserts that "Defendants' opposition fails to identify any actual prejudice that would justify denying Plaintiff leave to file a First Amended Complaint. Instead, Defendants rely primarily on timing and generalized claims that the proposed amendment will require them to respond to additional allegations. That is not legal prejudice under California's liberal amendment policy." (Reply, 2:2-5.) Plaintiff properly contends Defendants do not assert prejudice. However, the Court

recognizes that leave to amend may also properly be denied when “the insufficiency of the proposed amendment is established by controlling precedent and ... [can]not be cured by further appropriate amendment.” (California Casualty, *supra*, 173 Cal.App.3d at pp. 280-281; see, e.g., *Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 231 [not an abuse of discretion to deny leave to amend when “proposed amendment would have been futile because it was barred by the statute of limitations” with no indication of relating back to the original complaint].)

Regarding the sufficiency

of the allegations, Plaintiff asserts that he has a “good-faith factual basis supporting the proposed allegations. The evidence developed during discovery establishes that Logan concealed material information concerning his criminal history by falsely denying under oath that he had ever sustained a felony conviction. Logan later admitted that denial was false and subsequently identified convictions for robbery and forcible oral copulation involving a minor by force or fear. Plaintiff does not contend that the existence of the convictions alone establishes punitive liability. Rather, the convictions, the concealment of those convictions, the false verified discovery responses, and the circumstances surrounding Logan’s operation of a commercial passenger vehicle collectively provide a good-faith basis to investigate and allege conduct constituting oppression, fraud, malice, or conscious disregard for the rights and safety of others within the meaning of Civil Code section 3294.” (Mot., 8:14-25.)

Plaintiff also contends

that “Civil Code section 3294(b) authorizes punitive damages against a corporate employer where an officer, director, or managing agent authorized or ratified wrongful conduct, employed or retained an unfit employee with conscious disregard for the rights or safety of others, or was otherwise personally guilty of oppression, fraud, or malice. The evidence developed thus far establishes that Logan possessed a criminal history bearing directly upon his fitness to operate a commercial passenger vehicle transporting members of the public. The circumstances further suggest that a reasonable hiring and screening process may have revealed information relevant to Logan’s fitness. The extent of the corporate defendants’ knowledge, investigation, hiring practices, retention decisions, supervision, training, and ratification remains uniquely within Defendants’ possession.” (Mot., 9:5-15.)

Defendants make

assertions regarding Plaintiff's inability to meet the pleading standard for punitive damages. However, the Court finds that these assertions are properly the subject of demurrer.

As to Defendants'

assertions that Plaintiff cannot have a cause of action for punitive damages due to futility, Defendants first assert that "[t]he felony at issue has nothing to do with Defendant Logan's driving capabilities, impairment of [sic] the date of the accident, or inability to competently operate a motor vehicle." (Opp., 7:10-12 [emphasis omitted].) The Court is not persuaded, that from the pleadings, Logan's felony cannot be related to the assertion of punitive damages and negligence. Additionally, Plaintiff asserts in response that "[t]he punitive damages allegations arise from the same incident and from Defendants' own conduct, including issues relating to hiring, screening, training, supervision, retention, and entrustment. These issues are not collateral or unrelated. They go directly to the circumstances under which Defendant Logan was permitted to operate the vehicle involved in the collision." (Reply, 5:21-24.)

Defendants also contend

that "Plaintiff seeks to take advantage of the 'carve out' from the doctrine set forth in Diaz by claiming punitive damages. If Plaintiff were to successfully allege punitive damages, Plaintiff could maintain the discoverability and relevance of employer misconduct. However, the 'carve out' is unavailable in this action by virtue of lack of any facts even indicating, let alone establishing, 'malice, fraud, or oppression' [sic] by either Defendant Logan or the Corporate Defendants." (Opp., 8:19-23.) Although Defendants contend this carve out is unavailable due to Plaintiff's lack of facts, Defendants do not demonstrate that the alleged insufficiencies cannot be cured by further amendment. In light of the policy of liberally granting leave to amend, it is preferable to allow the amendment and permit a challenge to the amended pleadings on demurrer, motion for judgment on the pleadings, or otherwise. ((See Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048 ["even if the proposed legal theory is a novel one, 'the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.'"].) Accordingly, the Court finds that granting leave to amend is proper.

Conclusion

Based on the foregoing, Plaintiff's motion for leave to file an amended complaint is GRANTED.

Plaintiff is ordered to give notice of this Order.

DATED: July 15, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court